

German court says intelligence agency can't designate the AfD party an extremist group for now



An election poster of the German far right Alternative for Germany party (AfD), right, is attached to a lamppost in front of a giant election poster showing a map of Germany, at the headquarters of the German Christian Democratic Union (CDU) in Berlin, Germany, Jan. 29, 2025. Slogan reads: 'Now AfD'. (AP Photo/Michael Sohn, File)

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BERLIN (AP) — A German court said Thursday that the country's domestic intelligence agency can't label the [Alternative for Germany](#) party a proven right-wing extremist group while it considers a complaint by the opposition party against last year's designation.

The BfV intelligence agency [announced its decision](#) on Alternative for Germany, or AfD, in May. It described the party as a threat to the country's democratic order, saying it

“disregards human dignity” — in particular by what it called “ongoing agitation” against refugees and migrants.

AfD swiftly [filed a suit](#) to the administrative court in Cologne, where the agency is based. The agency then [suspended the designation](#), which would allow it to carry out greater and broader surveillance of the party’s activities, pending a ruling from the court.

The court said it issued an injunction Thursday that blocks the BfV from designating and treating AfD as a proven right-wing extremist group until it has issued a definitive ruling on the party’s lawsuit. It said it isn’t yet clear when it will deliver that ruling.

A court statement said that, on its examination of the evidence so far, it is sufficiently certain that there are “efforts against the free democratic fundamental order” inside the party. But it said those efforts don’t characterize the party in a such a way that “a fundamental anticonstitutional tendency can be established in its overall picture.”

AfD finished [second in a national election](#) a year ago. It is now the biggest opposition party in the national parliament and it hopes to perform well in a string of state elections this year.

The U.S. administration last year criticized the designation by the intelligence service, prompting a retort from the German Foreign Ministry.

AfD co-leader Alice Weidel described Thursday’s ruling in a post on X as “a great victory not just for AfD, but also for democracy and the rule of law!”